

In G 1/05 of 7 December 2006 (OJ 2007, 362) the Enlarged Board of Appeal stated that, for an objection under Art. 24(3), first sentence, EPC to be justified, it was not necessary that the board member concerned actually be partial. It sufficed that there was a **suspicion** (see chapters III.J.4., III.J.5. and III.J.6. below), i.e. an appearance, of partiality (called the "objective test" in the ECtHR jurisprudence since *Piersack v. Belgium* (1982) of 1 October 1982, No 8692/79, paragraph 30). There should be no risk that the courts would not ensure that justice was both done and perceived by the public to have been done. What was at stake was the confidence that the boards of appeal inspired in the public (see also R 19/12 of 25 April 2014, T 190/03 of 18 March 2005, OJ 2006, 502, ECtHR: *Puolitaival and Pirttiäho v. Finland* of 23 November 2004, No. 54857/00, paragraph 42). The Enlarged Board noted that it was, however, also commonly recognised in the jurisprudence of the boards of appeal and elsewhere that the party's "suspicion" had to be justified on an objective basis. Purely subjective impressions or vague suspicions were not enough (see also G 3/08 of 16 October 2009, R 2/12 of 26 September 2012, T 1674/12, T 1020/06 of 28 November 2008, T 985/01 of 18 March 2005 and T 190/03 of 18 March 2005, OJ 2006, 502, point 7 of the Reasons). The standpoint of the person concerned was important but not decisive (ECtHR: *Puolitaival*, paragraph 42; see also T 241/98 of 22 March 1999 and R 8/13 of 20 March 2015). The question was whether a reasonable, objective and informed person would on the correct facts reasonably apprehend that the judge had not or would not bring an impartial mind to bear on the adjudication of the case. It was thus necessary that a reasonable onlooker considering the circumstances of the case would conclude that the party might have good reasons to doubt the impartiality of the member objected to (see also T 954/98 of 9 December 1999, T 1257/14 of 5 February 2018).

1.6. Applicability of Article 24 EPC to first-instance proceedings

In G 5/91 (OJ 1992, 617) the Enlarged Board stated that although Art. 24 EPC applied only to members of the boards of appeal and of the Enlarged Board of Appeal, it must be considered as a general principle of law that nobody should decide a case in respect of which a party may have good reasons to assume partiality. The basic requirement of impartiality therefore applies also to the members of the EPO's departments of first instance who take part in decision-making activities affecting the rights of any party (see also T 433/93, T 95/04, T 283/03, T 1193/02, T 2475/17). The board noted, however, that Art. 24(1) EPC 1973 contained some provisions specifically aimed at safeguarding the impartiality of members of the boards of appeal and of the Enlarged Board of Appeal. For example, while no member of a board of appeal could take part in an appeal if he had participated in the decision under appeal (see in this chapter III.J.5.1.2), it was clearly permissible under Art. 19(2) EPC 1973 for one member of an opposition division to have taken part in the proceedings for grant of the patent to which the opposition related. In T 1674/12 the board observed that, whilst the rules applicable to board members were different, a member of an examining division which had granted a patent could take part in opposition proceedings concerning the same patent, provided he did not act as chairman (see Art. 19(2) EPC). In T 1647/15 the board, with reference to G 5/91 (OJ 1992, 617), stated that there was no legal basis for automatically applying Art. 24(3) and (4) EPC to an opposition division (as had been argued by the appellants).

T. 990/06 concerned enlargement of the opposition division by the addition of a legally qualified examiner. The board stressed that the division's composition had to be clear at all times so that its compliance with Art. 19(2) EPC and its members' impartiality pursuant to G. 5/91 could be verified.

See also chapter III.J.4 "Suspected partiality of members of the departments of first instance", as well as chapter III.K.1. "Composition of the competent departments of first instance".

1.7. Applicability of Article 24 EPC to disciplinary proceedings

Art. 3 of the Additional Rules of Procedure of the DBA of the EPO (see Supplementary publication 1, OJ 2022) contains rules on exclusion and objection in proceedings before the Disciplinary Board of Appeal. Art. 16 Regulation on Discipline for Professional Representatives (RDR) provides that Art. 24 EPC shall apply mutatis mutandis as regards the exclusion of and objection to members of any of the Disciplinary Bodies (Supplementary publication 1, OJ 2022).

In D. 7/82 (OJ 1983, 185) the Disciplinary Board applied Art. 24(3) EPC by analogy.

In D. 25/05 the Disciplinary Board dismissed the request for exclusion of A as inadmissible under Art. 16 RDR and Art. 24 EPC, the appellant having taken a procedural step while aware of the possible reason for objection.

2. Initiation of partiality proceedings and other procedural issues

Art. 24 EPC provides for two procedural alternatives. First, under paragraph 2, the member concerned may inform the board of a reason for exclusion. Second, under paragraph 3, a party may raise an objection if it has reason to do so. Art. 3(1) RPBA 2020 (see also Art. 3(1) RPBA 2007) and Art. 4(1) RPEBA additionally provide that the procedure under Art. 24(4) EPC is to be applied if a board has knowledge of a possible reason for exclusion or objection which does not originate from a member himself or from any party to the proceedings.

2.1. Notices of self-recusation

Under Art. 24(2) EPC, if, for one of the reasons mentioned in Art. 24(1) EPC, or for any other reason, a member of a board of appeal or a member of the Enlarged Board of Appeal considers that he should not take part in any appeal, he shall inform the Board accordingly.

In G. 1/05 of 7 December 2006 (OJ 2007, 362) a member of the Enlarged Board of Appeal informed it that she ought not to be taking part in the referral, since one of the opponents in the underlying case was represented by the law firm in which her husband and her son were partners. The Enlarged Board held that if a member of a board of appeal in a notice of withdrawal under Art. 24(2) EPC 1973 gave a ground which could by its nature constitute a possible ground for an objection of partiality, that ground should normally be respected by the decision on replacement of the board member concerned because it

could be expected that the member submitting the notice knew best whether or not a possible suspicion of partiality might arise.

In J.15/04 the board noted that board members' notices of self-recusation did not automatically effect their final exclusion from the proceedings (see also R.2/15 of 21 October 2015, T.1627/09 of 14 September 2018). A notice of self-recusation only initiated the procedure under Art. 24(4) EPC 1973 but did not pre-empt the outcome of the decision to be taken. If one accepted that a notice of self-recusation would immediately and automatically exclude the member concerned, then the party's formal right to a hearing before a duly appointed member of the board as established by the EPC would be violated. The board stated that the grounds of possible partiality given by a board member in a notice of self-recusation should normally be respected by the decision. It could be expected that the member submitting a notice of self-recusation based on specific facts knew best whether or not a possible suspicion of partiality might arise. The public or a party should not suspect bias after a decision of a board of appeal finding no grounds of suspicion of partiality (see also T.584/09 of 1 March 2013).

In R.2/15 of 21 October 2015 the Enlarged Board held that in the case of a party's objection under Art. 24(3), first sentence, EPC (see in this chapter III.J.2.3.) it had to be established that there was subjective partiality or at least an appearance of partiality (objective partiality). In the case of self-recusation, however, it was sufficient that an appearance of partiality was at least arguable in the circumstances of the case.

In T.1627/09 of 14 September 2018 the board accepted the notices of recusation submitted by both the chair and the legal member of the board in accordance with Art. 24(2) EPC. They had both formed part of the board in T.1627/09 of 10 October 2013 (decision set aside by R.2/14 of 22 April 2016, which ordered the proceedings be re-opened) and they held that if they remained as members of the board, they would have to decide for a second time on the same issues. The board referred to the jurisprudence of the boards of appeal mentioned above in this chapter and held further that this was in accordance with Art. 6(1) of the European Convention on Human Rights (ECHR) and Art. 47(2) of the Charter of Fundamental Rights of the European Union (CFR), both recognised as binding standards for proceedings before the boards. The board referred to the case law of the ECtHR on Art. 6(1) ECHR that only under very exceptional circumstances a notice of self-recusation shall not lead to a replacement (cf., inter alia, European Court of Human Rights, *Rudnichenko v. Ukraine*, no. 2775/07). As an example of national case law that followed the same lines the board referred to Austrian Supreme Court 4 Ob 186/11y EFSig 131.987.

2.2. Objection by other board members of the same board of appeal

In J.15/04 the notices of self-recusation of the two legal members contained information concerning a possible reason for exclusion of the chairman (which did not originate from the chairman himself). The board stated that for one of the originally appointed members of the board to be replaced by his alternate, the individual member had to have informed the board that he should not take part in the appeal or have been objected to by one of the parties. However, according to Art. 3(1) RPBA 2003, the application of

Art. 24(4) EPC 1973 extended to cases in which the board had knowledge of a possible reason for exclusion or objection which did not originate from a member himself or from any party to the proceedings. Thus, Art. 3 RPBA 2003 established the possibility of an objection by other members of the same board. In the case at hand, the replacement of the originally appointed chairman by an alternate chairman for the purposes of taking a decision under Art. 24(4) EPC 1973 was justified under Art. 3(1) RPBA 2003.

2.3. Objection by a party to a board member or members

Most partiality proceedings are initiated by a party objecting to a board member under Art. 24(3) EPC. According to the established jurisprudence of the boards of appeal, if a party is to receive a fair hearing before a tribunal, such a party should have no reasonable ground (on an objective basis) to suspect that any member of the tribunal is partial or prejudiced in relation to deciding the case (cf. G 5/91, OJ 1992, 617; G 1/05 of 7 December 2006, OJ 2007, 362; T 433/93, OJ 1997, 509; T 95/04, T 283/03, T 1193/02).

Art. 24(3) EPC states that "members" of a board of appeal may be objected to by any party. In T 843/91 of 17 March 1993 (OJ 1994, 818) the board held that this implied that all the members of a board may be objected to, together or separately (see also T 1020/06 of 12 November 2008 in which all the members of the original board were replaced pursuant to Art. 24(4), second sentence, EPC 1973).

2.4. Objection by a third party

In R 2/14 of 17 February 2015 the Enlarged Board stated that grounds for exclusion under Art. 24(1) EPC must be applied ex officio and may be raised by anyone, i.e. the parties, the board, or a third party. In addition to this, members of a board of appeal or of the Enlarged Board of Appeal may be objected to by any party for suspected partiality pursuant to Art. 24(3) EPC.

In G 2/08 of 15 June 2009 the Enlarged Board of Appeal noted that objections of suspicion of partiality were the monopoly of parties to the proceedings. However, under Art. 4(1) RPBA, if the Enlarged Board of Appeal had knowledge of a possible reason for exclusion or objection which did not originate from a member himself or from any party to the proceedings, then the procedure of Art. 24(4) EPC was to be applied (see also Art. 3(1) RPBA 2020). When construing the meaning of the wording "possible reason for exclusion or objection", one had to bear in mind the following distinction: (a) grounds that may be raised ex officio according to Art. 24(1) EPC and (b) an objection of partiality, reserved to the parties.

The Enlarged Board stated it might appear appropriate not to proceed any further with a complaint if an alleged reason for exclusion or objection not originating from a party to the proceedings or the Enlarged Board of Appeal itself would amount to an abuse of procedure. That would be the case where a complaint was not substantiated at all, ignored established case law, or had been filed maliciously in order to damage a member's reputation or with the purpose of delaying the proceedings, this list not being exhaustive.

3. Admissibility

According to Art. 24(3) EPC an objection on the ground of suspected partiality is not admissible if, while being aware of a reason for objection, the party has taken a procedural step. Nor may it be based on the nationality of members. Additionally, the boards have rejected objections as inadmissible because they were not reasoned or were a mere repetition of a previously rejected objection.

3.1. Competence of the board in its original composition

In T 1028/96 of 15 September 1999 (OJ 2000, 475) the board stated that, if an objection under Art. 24(1) or (3) EPC 1973 was made by a party, Art. 24(3), second sentence, EPC 1973 clearly required a preliminary examination of admissibility (see also R 12/09 of 3 December 2009 and T 355/13). The board stated that the purpose of the preliminary examination for admissibility was to determine whether the objection could go forward for substantive examination and decision. If the objection was not admissible, the board may not examine whether it was allowable or well founded. On the other hand, if, from the point of view of the board in its original composition, the objection was admissible, then the procedure under Art. 24(4) EPC applied. Thus, the issue of admissibility before the former board was only relevant to the opening of the procedure under Art. 24(4) EPC and had no bearing on the future decision of the board nominated in accordance with Art. 24(4) EPC. Admissibility, which is a fundamental prerequisite for a decision on the substance, must be examined by the board of its own motion (see also T 289/91).

3.2. Obligation to raise the objection immediately

In G 5/91 (OJ 1992, 617) the Enlarged Board of Appeal stated that, although Art. 24(3) EPC 1973 was only applicable to appeal proceedings, an objection on the ground of suspected partiality could also be disregarded at first instance if it had not been raised immediately after the party had become aware of the reason for the objection (or if it was based on nationality). The system might otherwise be open to abuse.

In T 568/17 the board, with reference to G 1/91, held that if the appellant in the case in hand had wished to challenge the composition of the examining division because of the examiner's earlier actions during the international phase, it should have done so in the European regional phase when it became aware of that composition.

In T 49/11 after having received the summons which had made the parties aware of the composition of the board, the respondent filed two letters with the board before raising the partiality objection. In the first letter, the respondent had expressed its intention to speak German at the oral proceedings. The board held that such a statement constituted a procedural step within the meaning of Art. 24(3), second sentence, EPC, because it was a formal notification under R. 4(1) EPC. The partiality objection was therefore rejected as inadmissible. After analysing the text of Art. 24(3), second sentence, EPC in the three official languages (Art. 177(1) EPC), the difference between Art. 24 EPC 2000 and Art. 24 EPC 1973, and the transitional provisions of the EPC 2000, the board stated that it would have come to the same result under the old and the new text of Art. 24(3) EPC.